

25PSCV04518 25PSCV04518

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-09

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Case Number: 25PSCV04518 Hearing Date: July 9, 2026 Dept: 6

CASE NAME: Joshua Lozano, et al. v. Betty Luong Wong, et al.

Defendant United Parcel Service, Inc.'s Motion to Strike Portions of Plaintiffs' Complaint

TENTATIVE RULING

The Court GRANTS Defendant United Parcel Service, Inc.'s Motion to Strike Portions of Plaintiffs' Complaint. The Court STRIKES the following words from the Complaint as to Defendant United Parcel Service, Inc. without leave to amend:

1. "own," and "lease, entrust, maintain," from paragraph MV-1 of the First Cause of Action-Motor Vehicle; and
2. "managed, maintained," and "entrusted" from paragraph GN-1 of the Second Cause of Action-General Negligence.

Defendant United Parcel Service, Inc. is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On December 17, 2025, plaintiffs Joshua Lozano and Lorena E. Solorzano (collectively, Plaintiffs) filed this action against defendants Betty Luong Wong (Wong), United Parcel Service, Inc. (UPS) (collectively, Defendants), and Does 1 to 75, alleging causes of action for motor vehicle and general negligence.

On March 30, 2026, UPS filed a cross-complaint against Wong and Roes 1 through 75, alleging causes of action for comparative indemnity and apportionment of fault, total equitable indemnity, and declaratory relief.

On May 4, 2026, Wong filed a cross-complaint against Roes 1 through 5, alleging causes of action for contribution, indemnity, and declaratory relief. On June 12, 2026, Wong dismissed the cross-complaint with prejudice.

On March 30, 2026, UPS moved to strike portions of the Complaint. Plaintiffs did not oppose the motion.

LEGAL STANDARD

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).) "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Id., § 436.)

DISCUSSION

Meet and Confer

The Court finds UPS' efforts to meet and confer before filing the Motion to Strike sufficient. (Hernandez-Moreno Decl., ¶ 4; Code Civ. Proc., § 435.5, subd. (a).)

Admission of Vicarious Liability

"[A]n employer's admission of vicarious liability for an employee's negligent driving in the course of employment bars a plaintiff from pursuing a claim for negligent entrustment." (Diaz v. Carcamo (2011) 51 Cal.4th 1148, 1161 (Diaz).)

UPS seeks to strike portions of the Complaint alleging direct negligence against UPS on the grounds that UPS admitted vicarious liability in its Answer to the Complaint and therefore cannot be liable based on negligent entrustment per Diaz. UPS then seeks to strike allegations in the motor vehicle cause of action against UPS based on owning, leasing, entrusting, or maintaining the vehicle because Plaintiffs did not allege facts showing UPS negligently owned, leased, maintained, or entrusted the vehicle. UPS also seeks to strike allegations against UPS in the general negligence cause of action that UPS managed, maintained, and entrusted the vehicle because Plaintiffs have not alleged any facts that UPS negligently managed, maintained, or entrusted the vehicle.

The Court agrees with UPS that its admission of vicarious liability in its Answer obviates any negligent entrustment theory of liability against UPS per Diaz. (See Answer (3/30/26), p. 2, lines 4-5; Diaz, supra, 51 Cal.4th at p. 1161.) As such, any allegations against UPS involving negligent entrustment are improper. The Court further construes Plaintiffs' lack of opposition as a concession that UPS' arguments on this point are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

The Court declines to address UPS' remaining arguments. Based on the foregoing, the Court GRANTS the motion. The Court STRIKES the following words from the Complaint as to Defendant UPS without leave to amend:

1. "own," and "lease, entrust, maintain," from paragraph MV-1 of the First Cause of Action-Motor Vehicle; and
2. "managed, maintained," and "entrusted" from paragraph GN-1 of the Second Cause of Action-General Negligence.[1]

CONCLUSION

The Court GRANTS Defendant United Parcel Service, Inc.'s Motion to Strike Portions of Plaintiffs' Complaint. The Court STRIKES the following words from the Complaint as to Defendant United Parcel Service, Inc. without leave to amend:

1. “own,” and “lease, entrust, maintain,” from paragraph MV-1 of the First Cause of Action-Motor Vehicle; and
2. “managed, maintained,” and “entrusted” from paragraph GN-1 of the Second Cause of Action-General Negligence.

Defendant United Parcel Service, Inc. is ordered to give notice of the Court’s ruling within five calendar days of this order.

[1] UPS’ Notice of Motion references “Page 1, ¶ 4” and “Page 5, ¶ 6” regarding the portions it seeks to strike. (Notice, 2:1-4.) However, those paragraphs do not exist in the Complaint. Plaintiffs used a Judicial Council Form complaint, which has different pages and numbering. (See generally, Compl.) Nevertheless, the Court was able to determine from reviewing the Complaint where the disputed language was located. The Court admonishes UPS’ counsel to be more cautious going forward about such details.